

Health and Safety Management of drug and alcohol at work

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BUILDING FOR LIFE

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1. Objective

The purpose of this procedure is to explain and describe:

- BYTP's policy on the use of psychoactive substances at work and in the fight against addictions
- The conduct of control tests as well as the care and support of employees who test positive
- Recording and reporting related to controls

2. Scope

This procedure applies to all BYTP sites, projects and worksites.

In the case of Joint ventures (JV), Consortiums or co-contracting operations, the project-specific procedure must include, as a minimum, the provisions set out in this document as well as any non-conflicting provisions of our partners. It is important to have all aspects adopted at the start of the project either prior to or as a minimum at Health and Safety kick-off meetings.

If any part of this document conflicts with a local requirement and is less stringent than that local regulation, then the corresponding local regulation(s) apply.

The implementation of this procedure involves the collection, recording, processing or storage of sensitive personal data within the meaning of the GDPR. Each subsidiary/entity/project ensures that this procedure is implemented in compliance with the applicable local regulations in this area.

3. Reference Documents

- BYCN - Lines of defence
- Standard system - Health and Safety Manual (BYTP-H&S-REF-2201)
- Standard Lines of defence and Life Saving Rules (BYTP-H&S-REF-2200)

4. Definitions and abbreviations

Addiction	A brain pathology defined by an addiction to a substance or activity that is harmful to health.
Ethylometer	Electronic device for measuring ethyl alcohol (or ethanol) in exhaled air (result in milligrams per liter of exhaled air).
Breathalyzer	A single-use test in which you must blow. Above a certain alcohol threshold, a chemical reagent changes color.
GDPR	General Data Protection Regulation, which governs the processing of personal data on the territory of the European Union
Psychoactive substance	A substance with a psychoactive effect that modifies behaviors, moods, perceptions and mental activity and can cause somatic effects on the body.
Saliva test	A drug test that collects saliva on a test device

5.Responsibilities

5.1. Direction BYTP

Defines the requirements for the prevention of addiction and the use of psychoactive substances at work in line with the BYCN requirements.

5.2. Health and Safety Prevention Department

Provides support to the management of subsidiaries, departments and/or services in the implementation of requirements in the fight against addiction and the use of psychoactive substances at work in line with BYTP's Health and Safety policy.

5.3. Prevention Manager Subsidiary/Country

Provides support to the management of the subsidiaries, departments and/or services within its scope in the implementation of the requirements in the fight against addiction and the use of psychoactive substances at work in application of this procedure and in accordance with the local regulations of the country.

5.4. Occupational Health Service

- Provides support to the health and safety department to define the policy.
- Participates in communication on the use of psychoactive substances and on the means of prevention and support implemented by BYTP.
- Supports BYTP employees who report a problem of addiction to one or more psychoactive substances.
- Supports BYTP employees who have tested positive.

5.5. Project Manager / Agency

- Provides the means and defines the organization necessary to carry out the controls.
- Defines the support of employees under the influence of psychoactive substances in coordination with the HR department and the occupational health service.
- Determines disciplinary sanctions based on the provisions of the applicable regulations and/or procedures.
- Ensures the link with employers of non-BYTP staff.

5.6. Human resources

- Supports any BYTP employee experiencing an addiction problem and refers them to the occupational health service or external support networks.
- Provides support for the organization/supervision of screening tests.

- Manages the application of the provisions set out in the applicable regulations and/or procedures (medical support, return to work, sanctions, etc.)

5.7. Health and Safety project manager

- Drafts, in collaboration with HR, the project-specific procedure for addiction management (if necessary)
- Ensures that all stakeholders are informed of the provisions in force (Induction, kick-off meeting, display, safety reminder, etc.)
- Ensures that screening tests are performed by trained personnel (external contractor and/or project staff).
- Provides support for the organization/supervision of addiction screening tests on his/her project and for the availability of the necessary equipment (breathalyzer, ethylometer, saliva test)
- Ensures the reporting related to the performance of addiction tests

5.8. Health professional at work on project

- Raise the awareness of employees in the risks of alcohol and drug addiction
- Manages the stock of equipment for screening
- May participate in the performance of screening tests depending on the project organization
- Supports BYTP employees who test positive

If there is no project medical team, the above responsibilities are distributed according to the organization defined by the Project.

5.9. Legal Department

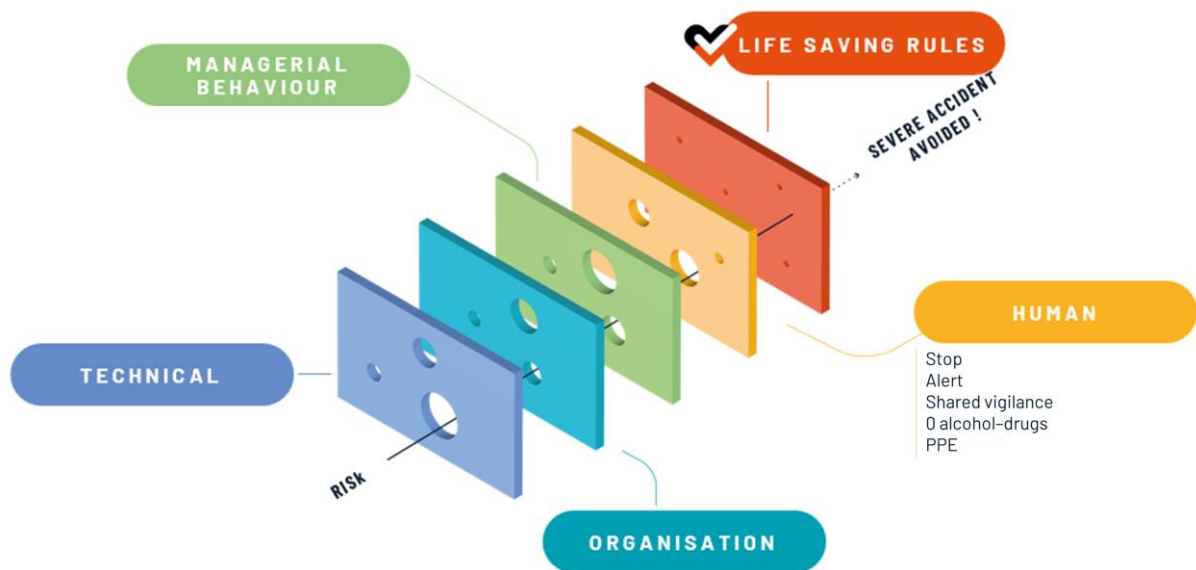
Supports projects / sites / headquarters / agencies on the provisions applicable in terms of GDPR.

5.10. Any employee

- Commits to compliance with the procedure in place and submits to screening tests as provided for by the applicable regulations and procedures.
- Have the duty to alert their superiors if they suspect that someone is under the influence of a psychoactive substance in the workplace.

6. Addiction policy

BYTP applies the defense lines defined by BYCN



The possession, distribution, consumption of drugs or alcohol, as well as being at work under the influence of psychoactive substances is strictly forbidden on all sites (headquarters, agencies, construction sites).

However, alcohol may be served, in reasonable quantities, during events organized by the employer in strict compliance with the following cumulative conditions:

- Outside the workplace (convention, seminar, training, etc.)
- No return to work after an event with alcohol consumption
- With the prior formal agreement of a Project manager/Management/Agency
- On site Accommodation OR breathalyzers offered before getting back on the road with a support solution in the event of a positive test OR management of the maximum controlled consumption to ensure compliance with regulatory limits.

BYTP supports its employees who express the wish to be helped with an addiction before being tested positive. Thus, any employee experiencing difficulties with alcohol and/or drug addiction is encouraged to ask their hierarchy or the HR Department of their entity for support in order to break with their dependence. This support may be covered for by the company without the implementation of sanctions.

The company will be able to support BYTP employees who have tested positive and wish to benefit from appropriate care.

7. Control procedures and means used

7.1. Control procedures

Drug and alcohol tests is carried out at:

- **Medical examination (if applicable and permitted by local regulations):** screening may be prescribed to any employee for whom the occupational physician or equivalent deems it necessary to carry out a screening test for suitability for the job
- **Project Health and Safety induction,** at least:
 - Each new temporary worker is tested on the first day before starting work
 - Crane operators and machine operators are tested on their first day on site before starting work then quarterly
- **Random checks:** Screening must be performed randomly to any employee, including subcontractors, partners, service providers and temporary workers. Crane operators and machine operators are tested at least quarterly.
- **Post events**
 - **Serious event:** Screening must be carried out on anyone directly involved in a serious event (subject to feasibility).
 - **HiPo events:** Screening must be carried out on any machine operator and/or a crane operator involved in a HiPo.
 - **Other types of events:** by decision of the project management.
- **Suspicion:** The screening to any employee whose unusual behavior suggests that they are intoxicated or under the influence of drug, including subcontractors, partners, service providers, and temporary workers. Suspicion also applies to any employee whose test has been positive during the other control methods (induction, random testing).

7.2. Means used

Alcohol testing is done using a:

- Ethylometer up-to-date calibration
- Breathalyzer (chemical or electronic, if breathalyzer not usable/available)

Drug tests are carried out by saliva test capable of detecting several types of drugs such as amphetamines, cocaine, methamphetamines, opiates, tetrahydrocannabinol.

8. Conducting tests

A flowchart summarizing the process of the various drug and alcohol screenings is available in section 11 of this document.

When conducting any test:

- Explain the process

- Respect the principle of confidentiality by using an appropriate location (changing rooms or offices or infirmary for drug tests for example) or consulting the results individually (for induction in particular)
- Suggest to the employee the opportunity to undergo a screening test in front of a witness.
- Ensure a sign-in sheet (or equivalent) to register people who have been tested. This sign-in sheet does not contain the nominative results of the tests carried out, but mentions at least the number of tests carried out as well as the number of positive tests obtained from the sample checked by type of check. An sign in sheet is given as an example **Addiction Control Attendance Sheet** (BYTP-H&S-FOR-2072).

In addition, in the event of suspicion or testing following a severe event / HiPo (or other by decision of the Project Management):

- Remove the employee from their workstation and inform the employee's hierarchy.
- Listen and talk with the employee before taking the test.
- Ensure a nominative record of the results. A template is given as an example - **Addiction Assessment Form** (BYTP-H&S-FOR-2075)

8.1. Refusal to submit to the test

Any BYTP employee who refuses to undergo to a screening test is removed from their workstation and is subject to disciplinary sanctions as defined by the internal regulations, the instructions established by the entities/projects or the applicable procedures. The person conducting the test must immediately inform, upon refusal, the employee's site management, the project management, the project H&S manager, and the HR project HR Manager.

Any non-BYTP employee who refuses to undergo a screening test organized by BYTP is covered by their employer and is not allowed on the site.

The person conducting the test must immediately inform, upon refusal, the employee's site hierarchy, the project management (which will liaise with the employer concerned) and the project H&S manager

8.2. Test case with negative result

When the test result is negative:

- Test carried out following a suspicion (of alcohol impregnation or drug use) or following a severe event /HiPo:
 - Sign and have the employee sign the **Addiction Assessment Form** (BYTP-H&S-FOR-2075)
 - Confirm, with the Project Manager and the employee's site management, the resumption of workstation
- Other case (random, induction): no specific action is required (unless otherwise provided for by the subsidiary / scope / project)

8.3. Test with positive result

Whatever the type of test performed (induction, random, etc.), when the 1st test is positive, always confirm the result with a 2nd test. If the 2nd test is negative, the result is considered negative (see chapter 8.2).

If both tests are positive, the final result is considered positive. The person who carried out the test carries out the following actions:

- Sign and have the employee sign the **Addiction Assessment Form** (BYTP-H&S-FOR-2075)
- Inform the employee's site management, the project management (who will liaise with the employer concerned for non-Bouygues staff if applicable), the Project H&S manager and the project HR manager (for Bouygues staff) and send them a copy of the signed form.
- If BYTP employee:
 - Inform the Occupational Health Service
 - Request a consultation at the employer's request with the occupational physician or refer the employee to a physician for appropriate care.

The BYTP employee's site management is responsible for taking charge of and/or escorting the employee concerned, in accordance with the following principles:

Case of positive alcohol test:

- Possibility of leaving the employee under permanent surveillance within the life base and to repeat regular tests until a new test indicates that the employee can return by his own means (according to the applicable regulations) or resume to his or her workstation (according to the penalties provided).
- Possibility of having the employee taken care of by a third party (family, friends, emergency services, if necessary, etc.) or escorted home by a secure means mandated by the project (taxi).
- Possible treatment by the site nurse if necessary, and medical care in the case of a strongly positive result.

Case of positive drug test:

- It is forbidden to let the employee enter by his or her own means.
- Possibility of leaving the employee under permanent surveillance within the life base while waiting for his or her safe departure.
- Possibility to:
 - Have the employee taken care of by a third party (family, friends, emergency services, if necessary, etc.).
 - Have the employee escorted back to his or her place of accommodation by a secure means mandated by the project (taxi).

The employee's subsequent return to work will be decided by the Operational Department in consultation with the HR teams.

For a temporary worker, partner or subcontractor, the terms for taking charge of and escorting them are identical but must be provided by the company to which they belong.

Any subsequent return of the employee to the site requires the employee's own company to demonstrate that measures equivalent to those required for the return of a Bouygues employee have been taken.

In all cases, the care, escorting or departure by their own means of any staff (BYTP, temporary worker, partner, subcontractor) is formalized and recorded on the **Certificate of Care** (BYTP-H&S-FOR-2086).

8.4. Contestation of the result

Any staff who test positive may contest the results of the test and request a second opinion by a doctor or a medical laboratory. This second opinion will be organized and paid for:

- By BYTP for its staff (via a laboratory contracted by the project),
- By temporary employment agencies, partners, service providers and subcontractors for their respective staff. If the employer fails to organize or take charge of the second expertise, the employee concerned is no longer authorized on the site.

9. Recording and reporting of addiction tests

The recordings associated with the addiction tests are kept on site by the Health and Safety department for the duration of the project and in compliance with the rules of the GDPR.

This archiving is kept for the duration of the project only. It must not be distributed to unauthorized persons and must be destroyed once the construction site is completed.

The project's H&S Manager transmits to the H&S Department of BYTP the monthly results of the addiction tests (quantitatively, not nominative) through the reporting tool set up by the H&S Department and which contains at least for each population:

- Number of Alcohol Tests
- Number of positive alcohol tests
- % Positive Alcohol Test
- Number of Drug Tests
- Number of positive drug tests
- % Positive Drug Tests

10. Appendices

- Addiction Control Attendance Sheet (BYTP-H&S-FOR-2072)
- Addiction Assessment Form (BYTP-H&S-FOR-2075)
- Certificate of care (BYTP-H&S-FOR-2086)

11. Drug and alcohol screening flowchart

